

26STCV17000 26STCV17000

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-09-21

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MOTION

TO STRIKE WITHOUT DEMURRER

The Court tenders

the following tentative decision in the matter Alfredo Salmeron v. Estela

Alvarado, et al., Los Angeles County Superior Court case number 26STCV17000,

set for hearing on September 21, 2026. Estela Alvarado (Defendant) moves to strike Alfredo Salmeron's

(Plaintiff) requests for punitive damages contained in his complaint. Plaintiff

opposes the motion. The motion is denied.

A. Legal Standard

The Court

may, upon a motion, or at any time in its discretion, and upon terms it deems

proper, strike any irrelevant, false, or improper matter inserted in any

pleading. (Code Civ. Proc., § 436, subd. (a).) The Court may also strike all or

any part of any pleading not drawn or filed in conformity with the laws of this

state, a court rule, or an order of the Court. (Id., § 436, subd. (b).)

The grounds for a motion to strike are that the pleading has irrelevant, false

or improper matter, or has not been drawn or filed in conformity with laws. (Id.,

§ 436.) The grounds for moving to strike must appear on the face of the

pleading or by way of judicial notice. (Id., § 437.)

When a motion

to strike is granted, the Court determines whether there is a reasonable

possibility that the defect can be cured by amendment. (Blank v. Kirwan

(1985) 39 Cal.3d 311, 318.) When a plaintiff "has pleaded the general set

of facts upon which his cause of action is based," the court should give the

plaintiff an opportunity to amend his complaint, since plaintiff should not “be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

Defendant moves to strike Plaintiff’s prayer for punitive damages and all paragraphs referencing punitive damages in the complaint. A plaintiff may recover punitive damages where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) Malice is defined as conduct intended to injure the plaintiff or despicable conduct by a defendant acting with a willful and conscious disregard of the rights and safety of others. (Id., § 3294, subd. (c)(1).) Oppression means despicable conduct subjecting a person to cruel and unjust hardship in conscious disregard of their rights. (Id., § 3294, subd. (c)(2).) And fraud refers to intentional misrepresentations or concealment of a material fact known to the defendant. (Id., § 3294, subd. (c)(3).)

A plaintiff attempting to prove malice or oppression must offer clear and convincing evidence of despicable conduct. (Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal.App.4th 306, 328.) This refers to conduct “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (Id. at p. 331.) A claim for punitive damages is insufficient where it lacks a factual assertion supporting the conclusion that a party acted with oppression, malice, or fraud. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.)

Here, Plaintiff alleges that Defendant’s conduct has been willful, oppressive, and malicious. (Compl. ¶ 28.) He alleges that Defendant acted intentionally and with a willful disregard of his rights so that Plaintiff would vacate the subject property. (Ibid.) Specifically, Plaintiff alleges that Defendant allowed habitability defects to persist in their property despite being notified of their existence. These included “water intrusion, severe and ongoing rodent infestations, insect infestations, plumbing issues, defective walls, defective ceiling issues, defective flooring issues,” and “pervasive insect and pest issues.” (Id. ¶¶ 5–6.) Plaintiff notified Defendant of the uninhabitable conditions but

Defendant failed to make necessary repairs and repeatedly cancelled maintenance requests. (Id. ¶ 9.) Plaintiff further alleges that the Los Angeles Housing Department (LAHD) conducted a site inspection on October 3, 2018, and issued a notice of order to comply. (Id. ¶ 16.) LAHD referred the case to its enforcement section and that case remained open and unresolved at the time of Plaintiff's filing the complaint. (Ibid.) Defendant failed to make necessary repairs despite being notified by the LAHD. (Id. ¶ 17.)

Defendant

argues that Plaintiff's complaint does not include specific facts. That is not the case. As discussed above, Plaintiff identifies multiple habitability issues with Defendant's property that went unabated despite repeated notification by Plaintiff and the LAHD. From these facts, it is possible for a jury to find that Defendant engaged in despicable conduct and showed a disregard for Plaintiff's rights and safety. At the very least, it cannot be said that Plaintiff's requests for punitive damages constitute irrelevant matters subject to a motion to strike. Indeed, Plaintiff alleges that Defendant knew deplorable conditions existed and were dangerous to Plaintiff and possessed the opportunity, time, and means to rectify them but deliberately and intentionally failed and refused to make necessary repairs. (Id. ¶ 12.) Thus, Plaintiff has pled sufficient facts to request punitive damages. Accordingly, Defendant's motion is denied.

Conclusion:

The motion to strike is denied.